

LAW AND MOTION TENTATIVE RULINGS

DATE: JUNE 22, 2026 TIME: 8:30 A.M.

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 26CV01751

COVENANT BROTHERS LLC v. PEREA

MOTION TO QUASH SERVICE OF SUMMONS (UD)

Parties shall appear.

Based upon tenant’s declaration that she found the summons and complaint at her residence and there is not yet any proof of service of summons filed, the Court intends to grant the motion.

No. 25CV04130

REITH v. DARE

**DEFENDANT’S MOTION TO COMPEL RESPONSES TO SPECIAL
INTERROGATORIES AND REQUEST FOR PRODUCTION OF DOCUMENTS
AND FOR MONETARY SANCTIONS (UNOPPOSED)**

The motion is denied without prejudice. “The papers filed in support of a motion or demurrer must consist of at least the following:” the motion itself, a notice of hearing on the motion, and a memorandum of points and authorities in support of a motion. (Weil & Brown *Civil Proc. Before Trial* (TRG 2025) §9:28, Cal. Rules of Court, rule 3.1112(a).) Here, defendant filed a one-page document titled “motion compel responses to special interrogatories and request for production of documents and for monetary sanctions” and a declaration from counsel with attached exhibits but did not file the required notice of motion or a memorandum of points and authorities. Therefore, the Court cannot grant the motion as requested.

LAW AND MOTION TENTATIVE RULINGS

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No. 25CV01211

WELLS FARGO BANK, N.A. v. FARLEY

**PLAINTIFF'S MOTION TO DEEM REQUESTS FOR ADMISSION ADMITTED
AND OF NONAPPEARANCE**

The motion is granted. The Court deems admitted all matters specified in the requests for admission, set one. (Code Civ. Proc., § 2033.280, subd. (b).) This will be the order of the Court unless defendant serves, before the hearing on the motion, a proposed response to the requests for admissions that is in substantial compliance with Code of Civil Procedure section 2033.220.

“If a party to whom requests for admission have been directed fails to serve a timely response, the requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction pursuant to Section 2033.030 of the Code of Civil Procedure.” (Code Civ. Proc., § 2033.280, subd. (b).) Monetary sanctions are mandatory if requested. (Code Civ. Proc., § 2033.280, subd. (c).)

Plaintiff demonstrated it served a set of requests for admission on September 23, 2025, and no responses have been served to date. (Lio Declaration, ¶¶ 1-2.) Defendant's initial opposition indicated he believes the motion is a violation of his civil rights because the complaint fails to prove a legally binding contract. He also declares he is disabled with a chronic health condition (seizures) and this action is causing him harmful stress. Defendant does not dispute he received the discovery. His subsequent opposition filed June 5, 2026, reiterates these unpersuasive arguments.

Plaintiff did not seek sanctions.

DEFENDANT'S MOTION TO DISMISS

The motion is denied.

Plaintiff Wells Fargo N.A. filed this breach of contract action against defendant Dennis Francis Farley for unpaid credit charges of \$11,985.29. (Complaint, April 18, 2025.) Defendant, who is self-represented, filed an answer on August 12, 2025. He filed a previous motion, heard on April 6, 2026, claiming the contract attached to the complaint has nothing to do with him, and is not evidence of any valid debt owed by him. His motion is based on Code of Civil Procedure section 26, “An obligation is a legal duty, by which one person is bound to do or not to do a certain thing, and arises from either of the following: (a) Contract. (b) Operation of law.” Defendant's subsequent amended motion, filed June 5, 2026, continues to rely on these unpersuasive grounds and was untimely filed for the June 22, 2026, hearing date.